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OUTSIDE COUNSEL PLAYBOOK · 2026 EDITION

The patent-forward outside counsel playbook *for tech companies.*

How to maximize patent value, position for investment and acquisition, and preserve company value — with a fixed-fee outside counsel structure built for technology companies.

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OPENING

How technology companies build value, *and how they protect it.*

Most technology companies treat their outside lawyer as a fix-it function — someone they call when a contract needs review, a patent needs filing, or a board minute needs drafting. That model worked when legal work was episodic. It does not work when intellectual property, AI risk, and corporate governance are constantly evolving alongside the product and the cap table.

This playbook outlines a different model — a continuous outside counsel engagement organized around three jobs that determine whether a technology company grows, gets funded, and exits well:

01 **Maximize patent value.** Treat the patent portfolio as a living asset that evolves with the product, the cap table, and the competitive landscape — not as a one-time filing exercise.

02 **Position for investment and acquisition.** Use continuous market and competitor surveillance to align product, IP, and corporate posture with what acquirers and Series B leads actually look for.

03 **Preserve company value.** Get the agreements, governance, and investor documentation right so the value the team builds does not leak through avoidable drafting errors or corporate housekeeping gaps.

The final page describes the fixed-fee monthly structure Whiteford and Schell IP use to deliver this work to technology companies, so the engagement is predictable in budget and continuous in coverage.

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PART ONE OF THREE

Maximize patent value with a *continuously evolving* portfolio strategy.

Patents are not deliverables. They are positions a company occupies against competitors and acquirers at a specific moment, against a specific roadmap. The position is only as strong as how recently it was reviewed against the current business, the current product, and the current market.

What "continuously evolving" actually means

Most early-stage companies file an initial patent, then forget about patent strategy for eighteen months until a Series A diligence checklist reminds them. By then the product has moved, the claims no longer match what ships, and the continuation window on the original application has narrowed. A continuous strategy avoids this with four routines:

Quarterly portfolio review. Every patent and pending application reviewed against the current product roadmap and revenue map. Identify claims that no longer track shipping features. Flag pending applications where a continuation should be filed before the parent issues.

Disclosure rhythm tied to product milestones. A short standing meeting between counsel and engineering before each major release. Capture inventions while they are fresh, document invention dates, and identify candidates for filing before public disclosure forecloses options.

Active claim-product alignment. For every revenue-generating feature, a documented map showing which issued or pending claims cover it. The map updates as the product evolves; missing coverage becomes a continuation or a new filing.

Annual international decision point. Once a year, review which jurisdictions actually warrant national phase entry or direct foreign filing, based on current revenue geography and competitive presence. Most early-stage companies file too broadly internationally and pay maintenance fees on patents that protect nothing.

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PART ONE OF THREE (CONTINUED)

Patent timing tied to *company milestones.*

The single biggest mistake early-stage technology companies make with patents is filing on the lawyer's clock instead of the company's clock. Filings should be timed to do diligence work, not paperwork work:

Pre-financing. File enough to show a real portfolio narrative to investors. A founder's pitch deck claim of "patent pending" on a single provisional reads thinner than a portfolio with documented continuation strategy.

Pre-launch. File before public disclosure forecloses options. Foreign rights are lost the day the product becomes publicly available without a prior filing on file.

Pre-partnership. File before a strategic partnership starts so the partner cannot later claim joint inventorship or expand into the IP.

Pre-exit. File continuations covering acquirer-relevant features six to twelve months before an exit conversation begins. Continuations filed during exit diligence look defensive; continuations on file beforehand look strategic.

The portfolio review deliverable

A continuous engagement produces, at least quarterly, a one-page portfolio status report that goes to the CEO and counsel. It identifies: (i) every active filing and its status; (ii) every revenue-generating feature and the coverage that protects it; (iii) the three highest-priority actions for the next quarter; and (iv) any deadline-driven decisions coming due in the next ninety days. The document is the artifact a board or audit committee can read in five minutes.

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PART TWO OF THREE

Position for *investment and acquisition* through market surveillance and IP-aligned product development.

Investors and acquirers do not value patents in isolation. They value whether the IP supports the financing story, the product roadmap, and the exit thesis. A continuous outside counsel function tracks two streams in parallel and brings them together at the cap-table conversation.

Stream one: market and competitor surveillance

A monthly review of competitor patent activity, public filings, M&A; announcements, and product launches in the company's segment. The output is not a report — it is a short briefing that flags two things:

Defensive concerns. Competitor filings or grants that may need design-around analysis, a freedom-to-operate review, or proactive continuation filings on the company's own portfolio.

Offensive opportunities. Adjacencies where the company's roadmap is creating filing opportunities the competition has not yet closed. Strategic patent licensing or acquisition opportunities before they become public.

Stream two: product-IP alignment

A standing line of communication between counsel and engineering so that product roadmap changes feed back into patent strategy in real time. When the team decides to ship a new feature, the engagement asks two questions: does this feature need new coverage, and does this feature create freedom-to-operate exposure against a known competitor patent?

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PART TWO OF THREE (CONTINUED)

Building *diligence-ready* posture before the first investor call.

Series B leads and strategic acquirers run IP diligence the same way: they pull the portfolio, they map claims against current product, they check assignment chain, they review trade-secret hygiene, and they look for litigation exposure. A company that runs this analysis quarterly on its own posture answers diligence questions in days instead of weeks.

The four things acquirers actually check

Assignment chain. Every inventor named on every issued patent and pending application has a documented, executed IP assignment. Gaps here are deal-breakers — they appear in nearly every diligence engagement that surfaces problems.

Claim mapping. A current, written map showing which claims cover which features. Where coverage is partial, a documented continuation strategy.

Trade secret inventory. A list of what the company treats as trade secret rather than patent, with documented access controls, NDA coverage, and exit interview procedures.

FTO posture. A documented (even if informal) freedom-to-operate analysis against the two or three competitor portfolios most likely to be raised in diligence or in a hostile cease-and-desist.

The surveillance briefing deliverable

A continuous engagement produces, monthly, a one-page briefing on competitive activity, with the two or three items flagged for action. If nothing requires action, the briefing says so explicitly. The point is the CEO knowing that someone is watching, on a defined cadence, with specific accountability.

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PART THREE OF THREE

Preserve company value through *smart drafting* and clean corporate housekeeping.

A patent strategy and a market posture only deliver value if the corporate vehicle behind them is preserved. The third pillar of continuous outside counsel work is the unglamorous, deal-critical discipline of getting the underlying documents right and keeping them right.

The drafting that prevents value leakage

Employment and contractor agreements. Every person who touches the product or the codebase signs a written agreement with specific IP assignment, confidentiality, and post-employment restriction provisions appropriate to the role and the jurisdiction. For AI-assisted work, the agreements address output ownership explicitly. Generic templates fail diligence; bespoke drafting that survives diligence is the deliverable.

Equity and option grants. Stock option plans, individual grant agreements, and vesting documents are clean, current, and consistent with board approvals. Acceleration triggers and post-termination exercise windows match what the board actually intended. Cap-table integrity here is what makes the company ownable.

Customer and vendor contracts. Inbound and outbound commercial terms reviewed for AI use, data rights, indemnity, and IP allocation. Customer-facing AI capability claims are consistent with what the product actually does. Vendor terms for AI tools address training and retention.

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PART THREE OF THREE (CONTINUED)

Corporate governance and *investor documentation.*

The second half of the third pillar is the discipline of running the company like an entity that wants to be acquired or financed cleanly. This is the work most often deferred and most often regretted at diligence:

Board minutes and written consents. Documented for every material decision, signed by the appropriate directors, filed in the corporate book. Reconstruction at diligence is expensive and looks unprofessional.

Investor agreement hygiene. Stockholder agreements, voting agreements, ROFR/co-sale agreements, and side letters tracked and updated as the cap table evolves. Founders' economics and control rights preserved where the deal allowed it.

Regular board updates. A documented cadence of board materials — financial, operational, legal — produced and circulated in advance of meetings, archived with the meeting record. Sophisticated investors read the cadence as a signal of company maturity.

Compliance and regulatory monitoring. Standing review of regulatory developments relevant to the company's sector — privacy, AI-specific rules, sector regulators, advertising law, employment law changes. The point is not to predict regulation; it is to make sure the company is not surprised.

The governance package deliverable

A continuous engagement maintains the corporate book — minutes, consents, equity records, investor agreements — in a state where diligence questions are answered by pulling a document rather than building one. At any given moment, the company is one folder export away from a complete diligence response.

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THE ENGAGEMENT MODEL

Fixed-fee monthly packages for *technology-company outside counsel.*

Whiteford and Schell IP offer technology-company outside counsel on a fixed-fee monthly basis. The structure is designed for companies that need continuous coverage across the three pillars in this playbook — patent strategy, market and acquisition positioning, and corporate preservation — without the hour-by-hour budget surprises of traditional big-law billing.

How the engagement is structured

Monthly fixed fee, defined scope. A specific menu of activities each month — quarterly portfolio reviews, monthly surveillance briefings, standing engineering check-ins, document reviews, and corporate housekeeping. Activities beyond the defined scope are quoted separately before they begin, never added to the monthly bill silently.

Quarterly true-up. Each quarter, the engagement reviews actual work against the defined scope and adjusts either the scope or the fee for the following quarter, so the structure tracks how the company is actually growing.

Predictable billing. One line item on the company's budget, the same number every month, with quarterly opportunities to revise. Boards and CFOs find this dramatically easier to plan against than open-ended hourly engagements.

The four tiers

Engagements scale across four tiers, each with a defined scope of monthly activity. The right tier is determined by company stage, patent portfolio size, and the cadence of corporate activity:

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FOUNDATION	*Foundation*	Pre-seed through seed. Standard corporate housekeeping, limited patent filing, contract review on demand, quarterly portfolio review.
GROWTH	*Growth*	Seed through Series A. Foundation scope plus active patent strategy, monthly market surveillance briefing, standing engineering check-ins, regular board materials review.
SCALE	*Scale*	Series A through Series B. Growth scope plus dedicated counsel time, pre-board strategic consultation, formal FTO posture, regulatory monitoring, AI governance maintenance.
CUSTOM	*Custom*	For companies with non-standard cadence — typically post-Series B, multi-product, or in regulated sectors. Engagement scoped from a starting conversation with Jeff.

Fee ranges are available on a brief introductory call. Engagements begin with a conflicts check, a one-page scoping document, and a written engagement letter that defines monthly scope and fee in plain language.

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NEXT STEPS

Discuss the right tier for your *company's stage.*

Engagements always begin with a short, no-cost conversation. The point of that conversation is to understand the company's current stage, the patent portfolio if any, the cadence of corporate activity, and the specific questions on the founder's or general counsel's mind. From there, we propose a tier and a starting scope.



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Jeff is Managing Partner of Whiteford's Mountain West practice and an AI legal advisor to technology companies. A patent attorney, venture capitalist, and former two-time founder, he works at the intersection of intellectual property, AI risk, and venture growth. Since 2012, his work has supported the creation of over $100 million in transaction and enterprise value across Colorado's technology ecosystem.

SCHEDULE A CONVERSATION

Book directly on Jeff's calendar: cal.com/jeffschell/meeting-with-jeff-schell

Or visit: learn.schellip.com

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